

**Justification and Approval (J&A) for Other Than Full and Open Competition**

**Was a J&A approved for the preceding acquisition where that acquisition required a J&A?** ☒ Yes ☐ No

**!! Attach the preceding J&A in the staff package for this J&A. The preceding J&A will be used as a reference document.**

**Is this a new or amended J&A Document?** ☒ New ☐ Amended ( Prior to Award Only! )

**Is this a Bridge Action as defined at DAFFARS 5302.101?** ☐ Yes ☒ No

**Dollar Value of this Acquisition:** [REDACTED]

**Contracting Activity:** AFLCMC/HBAK

**Purchase Request (if available) / Local ID Number:** TBD

**Program / Project (and PE, if applicable):** Portable Doppler Radar (PDR) Contractor Logistics Support 3 (CLS3)

**Program Type (PEO, Enterprise, of Operational):** PEO Program

**Authority:**

6.302-1 – 10 USC 3204(a)(1), Only One Responsible Source - No Other Supplies or Services Will Satisfy Agency Requirements

**Estimated Contract Cost (including options):** \$ [REDACTED] **J&A Type:** ☐ Class ☒ Individual

**COORDINATION ( DAFFARS 5306.304(a) )**

[Sign and Save Procedure](#)

\*\* The text in the signature blocks below is editable, including the title.

\*\* To remove a row, click the "X" next to the signature block. **CAUTION:** Once removed, it can only be restored by downloading the BLANK FORM again.

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|--------------------|------------------------------------|-------------------------|---|
| Date<br>[REDACTED] | Program Manager<br>[REDACTED]      | Signature<br>[REDACTED] | X |
| Date<br>[REDACTED] | Contracting Officer<br>[REDACTED]  | Signature<br>[REDACTED] | X |
| Date<br>[REDACTED] | Local Legal Reviewer<br>[REDACTED] | Signature<br>[REDACTED] | X |
| Date<br>[REDACTED] | Competition Advocate<br>[REDACTED] | Signature<br>[REDACTED] | X |

**APPROVAL ( DAFFARS 5306.304(a) )**

|                    |                                                                       |                         |
|--------------------|-----------------------------------------------------------------------|-------------------------|
| Date<br>[REDACTED] | PEO / Head of Procuring Activity / Designated Alternate<br>[REDACTED] | Signature<br>[REDACTED] |
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### I. Agency and Contracting Activity.

The contracting activity responsible for this Justification for Other Than Full and Open Competition is the Air Force Materiel Command (AFMC), Air Force Life Cycle Management Center (AFLCMC), Electronic Systems Directorate (HB), Aerospace Management Systems Division (HBA) - Weather Systems Branch (HBAW) and Contracting Branch (HBAK), 75 Vandenberg Drive, Bldg 1630, Hanscom AFB, Massachusetts 01731-2103. The Procuring Contracting Officer (PCO) for this action is [REDACTED].

### II. Nature and/or description of the action being approved.

This Individual Justification and Approval (J&A) is being presented to grant authorization for a new sole-source Indefinite Delivery/Indefinite Quantity (IDIQ) contract and related Delivery Orders/Task Orders (DOs/TOs) for firm-fixed price commercial CLS services and special projects. This requirement is a continuation of services currently provided under contract FA8730-20-D-0041, also awarded sole-source to EWR in 2020 due to the Government's lack of access to proprietary technical data and software rights essential for maintaining the 48 systems. Awarding this follow-on IDIQ to any other vendor would necessitate significant reverse engineering and software redevelopment efforts, resulting in substantial duplication of costs, unacceptable interruption in critical system support that are in operations, and potential performance degradation. This new IDIQ, with an estimated value of [REDACTED], will cover a four-and-a-half-year ordering period commencing no later than September 30, 2025, coinciding with the expiration of the current contract, and will encompass Fixed Support, Reduced Depot Maintenance, Line Replacement Unit (LRU) procurement, and Travel contract line items (CLINs). Maintaining continuity of support with EWR is crucial to ensure uninterrupted operational capability of these critical USAF PDR systems.

### III. Description of supplies/services required to meet agency needs.

CLS is required for the PDR systems to maintain operational effectiveness and suitability for mission support of the Tactical Meteorological Systems (AN/TMS-2) PDRs. The contractor will provide a maximum of 4.5 years of CLS to support 48 AN/TMS-2 PDR systems deployed globally. CLS services include:

- \* Program management
- \* Quality assurance
- \* Help desk support
- \* Maintenance
- \* Spare part repair management
- \* Operational, Safety, Suitability, and Effectiveness (OSS&E) impact analysis
- \* Configuration Control Board (CCB) support
- \* Government Furnished Property (GFP) management
- \* Required shipping and travel
- \* Repairing and replacing Line Replaceable Units (LRUs)
- \* Cyber Security maintenance, including evaluating and disseminating Time Compliance Network Order (TCNO) updates, conducting annual scans, updating operating systems, and application software to approved versions, and providing Contract Data Requirement List

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(CDRL) data deliverables to the government.

\* Identifying obsolescence through Engineering Change Proposals (ECPs), identifying hardware obsolescence issues, proposing replacement items, and solving software obsolescence issues via ECPs. Potential software changes related tasks include obtaining new cybersecurity certifications, software modifications, re-writing technical documentation, training administration, and supporting Government testing.

The 4.5-year CLS contract will cover 48 units for an estimated [REDACTED]. This estimate was derived from 4 years of actual CLS 2 costs. The additional 6 months comes from the addition of FAR 52.217-8 Option to Extend Services Clause for an additional 6 months if required. As a severable service, CLS will be procured on a per month basis. These efforts will be financed by Operations and Maintenance, 3400 appropriations.

Special Projects: Engineering changes are likely to occur during the CLS contract period. Engineering Change Proposals (ECPs) will be used to address technical refresh, obsolescence, and diminishing sources to improve Reliability, Maintainability, and Availability (RMA). Pre-determined labor category rates will be used in the eventuality of an ECP.

The Indefinite Delivery/Indefinite Quantity (IDIQ) contract is projected to have an estimated maximum value of [REDACTED] and a maximum ordering period of 4.5 years, from September 2025 to December 2029.

### **IV. Demonstration that the contractor's unique qualifications or the nature of the acquisition requires use of the authority cited above.**

The program office, Air Force Materiel Command (AFMC), Air Force Life Cycle Management Center (AFLCMC), Electronic Systems Directorate (HB), Aerospace Management Systems Division (HBA) - Weather Systems Branch (HBAW) has determined that award to any other source would result in substantial duplication of cost to the Government that is not expected to be recovered through competition and unacceptable delays in fulfilling the Government's requirements, as follows:

1. The Government determined it would cost an additional [REDACTED] beyond the current [REDACTED] estimate to compete this effort.
2. The Government estimates it would take decades for a new CLS contractor to achieve the Original Equipment Manufacturer's (OEM) specialized expertise. Given military operations critically rely on the AN/TMS-2 PDR system for weather data, such a prolonged transition would result in severe adverse impacts.

**See below for details.**

The AN/TMS-2 (PDR) system, a Commercial Off-The-Shelf (COTS) product acquired under FA8723-10-D-0001, provides essential weather data for joint operations. Integral to each system is the WeatherScout software, responsible for data processing and analysis. While the WeatherScout software license is commercially available, its effective integration with the PDR hardware requires specialized knowledge and expertise. Due to necessary technical refreshes, component obsolescence, and diminishing sources for replacement parts, continuous Contractor Logistics Support (CLS) is critical for sustaining system operations and cannot afford interrupted service to the field.

As the Original Equipment Manufacturer (OEM) and developer of the AN/TMS-2 PDR hardware and WeatherScout software, EWR Radar Systems, Inc. possesses unparalleled expertise in system maintenance and software integration due to their comprehensive understanding of both components and their complex interdependencies. This integrated approach is essential for ensuring the PDR's operational effectiveness, guaranteeing accurate calibration and interpretation of raw radar data.

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The specialized knowledge required for the AN/TMS-2 PDR system stems from the intricate interaction of several key components, including the integration of WeatherScout with the radar signal processor, data communication module, proprietary Intermediate Frequency Digitizer (IFD), antenna assembly, and Stable Local Oscillator (STALO). For instance, precise calibration and data exchange between WeatherScout and the radar signal processor are crucial for accurate weather data interpretation. The proprietary communication protocol used by the IFD necessitates specialized knowledge for seamless data transmission. These intricate relationships demand expertise in radar signal processing, meteorological data interpretation, and EWR's proprietary communication protocols, specifically within the context of WeatherScout software integration. This deep level of integration is unique to the AN/TMS-2 PDR system due to the customized interaction between the WeatherScout software and the PDR hardware, including the custom IFD, which are not present in other weather systems.

EWR currently provides all CLS requirements under contract FA8730-20-D-0041. This follow-on contract will ensure the continuation of these specialized, integrated services, supporting crucial technical refreshes to meet evolving operational availability, IT interconnectivity, and cybersecurity requirements. The current CLS contract incorporates the commercial data clause DFARS 252.227-7015, which restricts the government's rights to certain technical data related to the PDR hardware. While a separate WeatherScout license can be procured, the government lacks the technical expertise to effectively integrate and maintain the software with the PDR hardware. Furthermore, market research indicates no other viable sources possessing the specialized capabilities necessary for this integrated CLS approach.

Analysis demonstrates that separating CLS services for individual competition is neither cost-effective nor operationally feasible. Decoupling software and hardware CLS, in particular, would introduce significant inefficiencies, including extensive knowledge transfer between vendors, increased integration and testing demands, and the risk of interface compatibility issues. This would likely lead to cost increases due to duplicated effort, extended schedules, and the need for additional government technical expertise to manage the complex integration efforts. Moreover, any interruption in service during a transition period is unacceptable given the criticality of the weather data provided by the AN/TMS-2 PDR system to ongoing military operations. Therefore, continuing with a single, integrated CLS provider, leveraging EWR's existing expertise and established infrastructure, represents the most efficient, cost-effective, and operationally sound approach.

The following ground rules and assumptions were applied to determine the cost of competition for this product (1) Software License (2) ICS duration of 4.5 years (3) 25% of the Fixed Support costs associated with ICS will pay EWR support for WeatherScout. The estimate determined that the Government will need to source an additional [REDACTED] over and above the current cost estimate for the CLS 3 Sole Source contract.

**Additional cost above sole source IGCE if effort was competed**

| Line Items                     | FY2025     | FY2026     | FY2027     | FY2028     | FY2029     | Total      |
|--------------------------------|------------|------------|------------|------------|------------|------------|
| Software License               | [REDACTED] |            |            | [REDACTED] |            | [REDACTED] |
| Purchase System                | [REDACTED] |            |            |            |            | [REDACTED] |
| Interim Contract Support (ICS) | [REDACTED] | [REDACTED] | [REDACTED] | [REDACTED] | [REDACTED] | [REDACTED] |
| Training                       | [REDACTED] |            |            |            |            | [REDACTED] |
| Documentation                  | [REDACTED] |            |            |            |            | [REDACTED] |

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Total Increase

████████████████████

The estimated ██████████ cost increase associated with competing the Contractor Logistics Support (CLS) contract for the AN/TMS-2 (PDR) system represents a significant financial burden and operational risk. This figure encompasses several unavoidable expenses inherent in transitioning to a new vendor unfamiliar with the system's intricacies. Specifically, it includes ██████████ for new WeatherScout software licenses and updates; ██████████ to establish a dedicated lab and development environment, including a PDR unit for the contractor to develop and test necessary security patches; and ██████████ for Interim Contractor Support (ICS) to bridge the gap during the transition. Additionally, it includes ██████████ for initial training by EWR Radar Systems, Inc. and ██████████ for acquiring essential user and maintenance manuals from the OEM.

Given the product's planned obsolescence in 2029 and the anticipated fielding of a replacement product in FY27, investing an additional ██████████ in soon-to-be-obsolete technology represents poor fiscal stewardship. With a new product fielding in FY27, these funds would be better allocated towards the acquisition and integration of the replacement system, maximizing long-term value and minimizing sunk costs on outdated technology.

**V. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable, including whether a notice was or will be publicized as required by subpart 5.2 and, if not, which exception under FAR 5.202 applies.**

Numerous strategies were employed to ensure broad participation and identify potential sources for supplying the required services.

1. Web-based Research: Internet searches were conducted to find companies capable of providing sustainment and support for the PDR system. However, this process did not yield any alternative sources with the capacity to provide equivalent CLS3 contract support.

2. Standard Sources Sought Synopsis (SSS): On November 27, 2023, a SSS was published to the System for Award Management, which resulted in one response. The respondent was EWR, the current service provider. No other companies expressed interest and/or submitted applications.

3. Cold Calls and Website Solicitations: Companies were contacted through their respective "Contact Us" webpage forms, but these efforts did not produce any positive responses or alternative sources.

No comparable system sustainment services to those offered by EWR to the government were found through our research.

IAW FAR 5.201, A Notice of Contract Action - Sole Source was published on sam.gov, 17 December 2024 with an inactive date of 18 January 2025. The NOCA included the following:

*Interested parties may identify their interest and capability by submitting a Statement of Capabilities, via email, to the following Hanscom AFB personnel...*

No responses expressing interest or capability were received.

**VI. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.**

Based upon cost or pricing data provided in the offeror's proposal, the program office's technical analysis of the offeror's basis of estimates and a comparison of the proposed price to the Independent Government

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Estimate, over 7 years of historical costs incurred during Interim Contract Support (ICS) and CLS, the contracting officer expects they will be able to determine that the anticipated cost to the Government will be fair and reasonable.

### **VII. Description of the market research conducted and the results, or a statement of the reasons market research was not conducted.**

Market research for this requirement began with the posting of a Sources Sought/Request for Information (RFI) on November 27, 2023, which remained open until January 16, 2024. Concurrently, on December 14, 2023, two potential vendors, Vaisala and Radiometrics, were contacted directly. Vaisala was contacted through their website contact form and two follow-up phone calls, while Radiometrics was contacted via email to their sales and general inquiries addresses. Neither company expressed interest or indicated capability to compete for this requirement. To further explore potential sources, the Fixed Based Weather Systems Program Manager attended the 2024 American Meteorological Society (AMS) annual meeting in Baltimore, Maryland, from January 28 to February 1, 2024, with a copy of the RFI. The AMS meeting focused on meteorology and weather-related topics, providing a relevant venue for market research. Ultimately, only one vendor, EWR, the incumbent service provider, submitted a substantive response to the RFI. The market research concluded in December 2024, culminating in a Market Research Report dated December 17, 2024, which is attached as a supporting document.

\* Secondary market research was conducted because the original market research, initiated approximately 18 months ago in accordance with prescribed regulations, has exceeded (or is about to exceed) the 18-month validity threshold due to delays in the CLS contract approval process.

Our analysis confirmed that both vendors continue to offer maintenance services exclusively for their own products, which is consistent with our original market research findings indicating that neither company expressed interest in or capability to compete for this requirement.\*

### **VIII. Any other facts supporting the use of Other Than Full and Open Competition.**

N/A

### **IX. List of any sources that expressed, in writing, an interest in the acquisition.**

See Section VII above.

### **X. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisitions for the supplies or services required.**

Previous attempts to obtain full data rights for the AN/TMS-2 PDR system were unsuccessful (see CLS 2 J&A), reinforcing the need for EWR's specialized CLS. While the AN/TMS-2 PDR will be obsolete in 2029, continued CLS through FY29 is critical to bridge the gap until the new Portable Weather Radar (PWR) system is fully fielded. The PWR, under development via an AFWERX STRATFI contract with procurement starting in FY27 and fielding from FY28-FY29, offers significant life-cycle cost savings and will ultimately replace the AN/TMS-2 PDR. Transitioning CLS providers in the interim would be fiscally irresponsible, costing an additional [REDACTED] (see Section IV) - funds better allocated to the PWR.

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Moreover, EWR possesses unique expertise in the AN/TMS-2 PDR's WeatherScout software, essential for maintaining system performance and data integrity. Disrupting this support introduces significant risk and potential costs. Therefore, retaining EWR's CLS through FY29 is the most pragmatic and cost-effective strategy, ensuring uninterrupted weather data support and a seamless transition to the PWR.

**XI. Certification by the Contracting Officer.**

As evidenced by my signature above, I certify that this justification is accurate and complete to the best of my knowledge and belief.

**XII. Certification by the technical/requirements personnel.**

As evidenced by my signature above, I certify that any supporting data contained herein, which is my responsibility, is both accurate and complete.

☒ Remove the Guidance pages below.